



February 15, 2021

Joelle Magyar, Superintendent
Breck. -Broadview Hts. City SD
6380 Mill Rd.
Brecksville, OH 44141

Dear Ms. Magyar,

Happy and healthy wishes for 2021 from your ESC partners. Enclosed are three copies of the Educational Service Center of Northeast Ohio's Primary Service Agreement and the Ohio Department of Education (ODE)'s approved Cover Sheet for the 2021-2023 school year.

The Primary Agreement will require your school district's board approval along with signatures from the Board President, Superintendent, and Treasurer. On the ODE Cover Sheet, please provide your District's IRN#, contact person's name, email address, phone number, and signature. Please return two signed copies of our *Primary Agreement* and *Cover Sheet* to the ESC office by Friday, April 30, 2021, so that we can forward copies to the Ohio Department of Education as required by House Bill 153.

Thank you, and please feel free to call me if you have any questions.

Sincerely,

A handwritten signature in black ink that reads "Robert A. Mengerink".

Robert A. Mengerink
Superintendent

RAM/LLL

✓Cc: Treasurer

Enclosures

2021 - 2023

**PRIMARY SERVICE AGREEMENT
CITY, EXEMPTED VILLAGE and LOCAL SCHOOL DISTRICTS
O.R.C. 3313.843**

The Educational Service Center of Northeast Ohio (ESCNEO), 6393 Oak Tree Blvd. Independence, OH 44131 and the **Brecksville-Broadview Heights City Schools** Board of Education do hereby agree to implement the Primary Service Agreement as per O.R.C. 3313.843 for the 2021-2022 and 2022-2023 school years.

Services provided under a Primary Service Agreement entered into by **Brecksville-Broadview Heights City Schools** may include any of the following:

- In-service and Continuing Education programs for district personnel
- Curriculum Services
- Research and Development programs
- Academic instruction for which the Governing Board employs teachers pursuant to section 3319.02 of the Revised Code
- Assistance in the provision of special accommodations and classes for students with disabilities
- Any other services the District Board and Service Center Governing Board agree can be better provided by the Service Center and are not provided under an agreement entered into under section 3313.845 of the Revised Code

Services included in the agreement shall be provided to the district in the manner specified in the agreement.

The ESCNEO and **Brecksville-Broadview Heights City Schools** enter into a primary agreement upon the following:

1. The effective date of implementation of the above services shall be from July 1, 2021, through June 30, 2023.
2. In accordance with O.R.C. 3313.843(H), the City/Exempted Village/Local School district agrees to a deduction from their State Foundation payments in the amount of \$6.50 per pupil plus any additional contracted services beyond the deduct.
3. Ninety percent 90% of the State Subsidy per-pupil funds received by ESCNEO pursuant to O.R.C. 3313.843(G) shall be allocated to the City/Exempted Village/Local School district towards services provided through the ESCNEO under this Agreement.
In the event that an agreement is not continued in any ensuing year, the unexpended balance shall remain with the ESCNEO.

4. A continuous accounting of fund balances shall be kept by the ESCNEO and reported to the City/Exempted Village/Local School district. Unexpended balances may be carried over to the next fiscal year.
5. Upon request of the City/Exempted Village/Local School district, the ESCNEO shall employ appropriate personnel who will be assigned to the service area according to the philosophy, values, and needs of the City/Exempted Village/Local district.
6. The City/Exempted Village/Local Board of Education shall pay the ESCNEO for all net costs (if not covered by the Primary Service Agreement funds) to employ personnel specified. The ESCNEO shall invoice the City/Exempted Village/Local Board of Education for said net costs. Said net costs shall include the cost of employee leave and substitute personnel, SERS surcharge (if any), salary, workers' compensation, unemployment compensation, severance, Medicare, retirement, liability insurance, life insurance, and health benefits attributable to the Governing Board. Should any subsequent unemployment compensation or severance claim be made by an employee covered under this contract, the City/Exempted Village/Local school district herein receiving the services shall be so liable for their proportionate share of the employee's claim. The City/Exempted Village/Local school district accepts the responsibility of conducting annual evaluation (s) of administrative, classified, and certified employees pursuant to Section 3319.01, 3319.02, 3319.11, and 3319.111 of the Ohio Revised Code.

Adopted by the **Brecksville-Broadview Heights City Schools** Board of Education on:

BOARD PRESIDENT _____

DATE _____

SUPERINTENDENT _____

DATE _____

TREASURER _____

DATE _____

Adopted by the Educational Service Center of Northeast Ohio:

Robert H. Murphy

SUPERINTENDENT

DATE January 21, 2021

[Signature]

TREASURER

DATE January 21, 2021

Resolution #2020-11-05

Cover Sheet

Educational Service Center of Northeast Ohio
Contract Submitted to
Office of Quality School Choice & Funding
State Of Ohio Department Of Education

ESC Name: ESC of Northeast Ohio

ESC IRN: 046532

District or other Entity: Brecksville-Broadview Heights City Schools District IRN: _____

Type of Contract:

- ☒ Primary Agreement between School District and ESC per ORC 3313.843 (related to per-pupil amounts \$ 6.50 or more and supervisory services per ORC 3317.023 (E))
- ☐ Additional Agreement between School District and ESC per ORC 3313.845 (dollar amount set by agreement)
- ☐ Agreement between ESC and Community School per 3313.844 or STEM School per 3326.45
- ☐ Other Contract per ORC 3313.846 between ESC and local political subdivision other than a school district, community school, or STEM school

Type of Update:

- ☐ New Contract
- ☐ Amendment Amount of Previous Contract
- ☒ Extension of Previous Contract

Effective Date of Contract: July 1, 2021

Termination Date of Contract: June 30, 2023

Contact Person:

Name: _____

E-mail: _____

Phone: _____

Signature: _____